



Mental Health (Amendment) Act 1975

1975 CHAPTER 29

An Act to strengthen the Mental Health Act 1959 to enable potentially dangerous patients to be detained in institutions. [8th May 1975]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Where a patient is liable to be detained under the Mental Health Act 1959 (in this Act referred to as “the Act of 1959”) in pursuance of an application, order or direction made or given by virtue of section 26(2)(a)(i), 60(2), 73(2)(e) or 76(2)(b) of that Act (cases in which detention is authorised if the patient is suffering from mental illness or severe subnormality but not if he is suffering only from psychopathic disorder or subnormality)—

Continued detention of psychopathic and subnormal patients who are likely to be dangerous. 1959 c. 72.

(a) the responsible medical officer shall not make a report under section 38(1) of that Act (reclassification of patients) which would have the effect that the only form or forms of mental disorder specified in relation to the patient would be psychopathic disorder or subnormality or both; and

(b) a Mental Health Review Tribunal shall not give a direction under section 123(3) of that Act (change of specified mental disorder) which would have that effect, unless the officer or Tribunal has first considered whether the patient, if released, would be likely to act in a manner dangerous

to other persons or to himself; and if the officer or Tribunal considers that he would be likely to act as aforesaid, the officer or Tribunal shall include a statement to that effect in the report or direction and the authority to detain the patient shall not terminate by virtue of the report or direction.

(2) Before coming to a decision on the question mentioned in subsection (1) above a Mental Health Review Tribunal shall cause to be made, and shall take into consideration, a report on that question by the responsible medical officer; and if the Tribunal decides that the patient would not be likely to act as mentioned in that subsection it shall record its decision to that effect.

(3) Where the authority for the detention of a patient has continued by virtue of—

(a) subsection (1) above; or

(b) section 44(2) of the Act of 1959 (continued detention after age of twenty-five of psychopathic or subnormal patient who is likely to be dangerous),

the responsible medical officer shall not make a report on the patient under section 43(3) of the Act (renewal of authority for detention) unless he is of opinion that the patient, if released, would be likely to act as mentioned in subsection (1) above; and if he is of that opinion he shall include a statement to that effect in his report.

(4) Where a report under section 38 or 43(3) of the Act of 1959 contains such a statement as is mentioned in subsection (1) or (3) above, the information to be given to the patient, or to the patient and his nearest relative, in relation to that report under section 38(2) or 43(6) of that Act shall include the information that such a statement is contained in the report.

(5) Where an application is made to a Mental Health Review Tribunal by or in respect of a patient who is liable to be detained by virtue of the inclusion in a report under section 38(1) or 43(3) of such a statement as is mentioned in subsection (1) or (3) above, the Tribunal shall direct that the patient be discharged if it is satisfied that the patient, if released, would not be likely to act as mentioned in subsection (1) above.

(6) Where a report under section 38 or 43(3) of the Act of 1959 or a direction under section 123(3) of that Act contains such a statement as is mentioned in subsection (1) or (3) above, an order for discharge shall not be made under section 47 of that Act by the nearest relative of the patient during the period of six months beginning with the date of the report or direction.

(7) In this section—

(a) references to a patient liable to be detained in pursuance of an application made by virtue of section 26(2)(a)(i) of

the Act of 1959 include references to a patient who, by virtue of paragraph 12 of Schedule 6 to that Act, falls to be treated as if he had been admitted to hospital in pursuance of an application for admission for treatment under Part IV of that Act and had been so admitted as a patient suffering only from mental illness or severe subnormality;

- (b) the reference to section 44(2) of that Act includes a reference to paragraph 12(3) of that Schedule; and
- (c) references to other provisions of that Act include references to those provisions as applied by that Schedule.

2.—(1) This Act may be cited as the Mental Health (Amendment) Act 1975.

Short title,
interpretation,
commence-
ment and
extent.

(2) Sections 4, 59 and 147 of the Act of 1959 shall apply for the interpretation of this Act as they apply for the interpretation of that Act and Part IV thereof.

(3) This Act shall come into operation on such day as the Secretary of State may by order made by statutory instrument appoint.

(4) This Act shall not extend to Scotland or Northern Ireland; and section 154(2) of the Act of 1959 (application to Scilly Isles) shall have effect as if the provisions of this Act were included in that Act.